

IN THE HONORABLE SUPREME COURT OF THE REPUBLIC OF LIBERIA
SITTING IN ITS MARCH TERM, A.D. 2026

BEFORE HIS HONOR : YAMIE QUIQUI GBEISAY, SR. CHIEF JUSTICE
BEFORE HER HONOR : JAMESETTA H. WOLOKOLIEASSOCIATE JUSTICE
BEFORE HIS HONOR : YUSSIF D. KABA.....ASSOCIATE JUSTICE
BEFORE HER HONOR : CEANEH D. CLINTON JOHNSON.....ASSOCIATE JUSTICE
BEFORE HIS HONOR : BOAKAI N. KANNEH.....ASSOCIATE JUSTICE

Reuben Horton, of the City of Monrovia, Montserrado County)
Republic of Liberia.....Appellant)

Versus) APPEAL

The Management of the Liberia Electricity Corporation, of the)
City of Monrovia, Montserrado County, Republic of Liberia)
.....Appellee)

GROWING OUT OF THE CASE:

The Management of the Liberia Electricity Corporation, of the)
City of Monrovia, Montserrado County, Republic of Liberia)
.....Petitioner)

Versus) PETITION FOR
JUDICIAL REVIEW

His Honor Boakai A. Sheriff, Hearing Officer, Division of Labor)
Standards, Ministry of Labor, Rep of Liberia... 1st Respondent)

And)

Reuben Horton, of the City of Monrovia, Montserrado County)
Republic of Liberia.....2nd Respondent)

Heard: June 16, 2026

Decided: August 28, 2026

MADAM JUSTICE WOLOKOLIE DELIVERED THE OPINION OF THE COURT

The appellee, the Management of the Liberia Electricity Corporation (hereinafter "LEC" or "the appellee"), employed the appellant, Mr. Reuben Horton, on July 3, 2017, initially as a technician, and thereafter promoted him to the position of Metering and Anti-Theft Supervisor in its Transmission and Distribution Department, a position he held until the termination of his services in May 2023. The appellant was assigned at the Capitol Hill /Congo Town business

unit and offered a monthly salary of Seven Hundred United States Dollars (US\$700.00), together with other emoluments.

The controversy that culminated in this appeal has its genesis in a complaint lodged against the appellant by a member of the public. The records show that, on February 22, 2023, one Mr. Beyan Lavelah, a resident of the Rehab and GSA Junction Community, went to the LEC compound at Waterside and reported that the appellant had asked him to pay Three Thousand United States Dollars (US\$3,000.00) to assist him in obtaining a dedicated transformer for his business; that he paid the appellant One Thousand Three Hundred United States Dollars (US\$1,300.00) as advanced payment, with an understanding that the balance would be paid upon the installation of the transformer; that subsequently the appellant and his crew erected an H-frame pole and installed a transformer at his premises, but the transformer proved faulty. Mr. Lavelah stated that when the appellant neither replaced the transformer nor refunded his money, the matter was reported to the Paynesville Police Station, where the appellant executed a promissory note to refund the money he had received; that through the intervention of LEC's Labor Relations Officer, the appellant paid Four Hundred United States Dollars (US\$400.00) in two installments, which the customer declined to accept on grounds that it was small or that he could not receive his money in piecemeal.

Upon receipt of the complaint of the appellant's alleged involvement with illegal connection and the receipt of money from a customer for a transformer, the LEC, through its Executive Director for Human Resources, suspended the appellant without pay, pending an investigation. A Disciplinary Committee chaired by Mrs. Hnede L. Berrian-Sillah was constituted to inquire into the allegation.

The Disciplinary Committee conducted its inquiry by reviewing relevant communications, issuing citations, and taking oral and written statements. Statements were obtained from the appellant; from Mr. Christian C. Davies and Mr. Stephen N. Farkollie, both employees of LEC; and from Mr. Martin Sandike, Executive Director of Rocia Electrical and Engineering Company, and two LEC drivers.

In his defense, the appellant maintained that he did not personally receive money from the customer, but merely stood as guarantor for Rocia Electrical and Engineering Company, whose agent, one Tee Gonleh, received the money and undertook to procure and install the transformer. Upon inquiry, however, the Executive Director of Rocia denied any knowledge of the transaction, and denied that any person named Tee Gonleh was employed by the

company. The appellant gave a telephone number to contact the said Tee Gonleh. He was called by the Committee, but Tee Gonlah disclaimed knowledge of the transaction.

At the conclusion of its inquiry, the Disciplinary Committee found that the appellant, without authority and contrary to his job description and the internal policies of the LEC, requested and received US\$1,300.00 from the customer for the procurement and installation of a dedicated transformer; that his claim of having acted merely as guarantor was unsubstantiated; that his conduct constituted grave misconduct that exposed the Corporation to public ridicule and a loss of public trust, and rendered it impossible to continue the relationship of mutual trust and confidence between him and the LEC. By its report dated May 12, 2023, the Committee recommended that the appellant's employment be terminated for grave misconduct pursuant to Section 14.3(a) of the Decent Work Act of 2015.

Acting upon the recommendation of the Committee, the appellee terminated the appellant's employment for grave misconduct on May 22, 2023. Aggrieved by his dismissal, the appellant, via letter dated May 29, 2023, filed a complaint of wrongful dismissal and unfair labor practices to the Ministry of Labor against the appellee. The complaint letter is restated verbatim below:

"Ref: LETTER OF COMPLAINT FOR WRONGFUL DISMISSAL.

Dear Hon. Gibson:

With compliments, I write to formally complain the Liberia Electricity Corporation (LEC) my former employer for the unlawful dismissal served me on May 22, 2023, without due process for which I bring this complain. Further to the above, my wrongful dismissal grows out of an investigation suspension letter that was served on March 2, 2023 WITHOUT PAY and subsequently a letter of dismissal on mere allegation that I received money (USD1,300.00) for the procurement and installation of a dedicated transformer and that my accuser was not seen at any given time at the said investigation neither a written statement(s) from my alleged accuser(s) or any individual or group of individual so as to substantiate the allegation against my person for which I am requesting your honor to kindly look into my complain with urgency.

Wherefore, in view of the foregoing facts and circumstances I anticipate your fullest corporation so as to fast track this complaint at bar. Attached are copies of the suspension and dismissal letters for your easy reference.

Sincerely yours,
Reuben Horton."

The complaint was assigned to Mr. Boakai A. Sheriff, Director of Labor Standards and Hearing Officer of the Division of Labor Standards, Ministry of Labor. When the matter was first called on July 13, 2023, the appellee prayed for summary dismissal of the complaint

under Section 14.2(b) of the Decent Work Act, on the ground that the appellant had been terminated for grave misconduct following an internal investigation. The appellant resisted same and contended that he had been dismissed upon a criminal allegation without criminal prosecution. The Hearing Officer denied the motion and ordered the matter to full investigation.

At the investigation at the Ministry of Labor, the appellant took the stand as a lone witness on his own behalf and testified that he was summoned on March 2, 2023, and handed a suspension letter pending investigation; that when he appeared for the internal investigation with his legal counsel, his counsel was requested to leave the proceeding on the ground that a preliminary investigation was being conducted; that his accuser was never present and could not be reached by telephone; and that, after two months of awaiting a recall back to work, he received a letter of dismissal. At the close of the appellant's testimony, counsel for the appellee moved for judgment during trial, contending that the appellant's lone testimony did not satisfy the burden of proof; the motion was resisted and denied.

In support of its defense, the appellee produced two witnesses. Its first witness, Mrs. Appilinah D. Peppler, an Executive member of the LEC Workers' Union who sat on the Disciplinary Committee, testified to the written complaint of Mr. Beyan Lavelah, to the appellant's written response, and to the Committee's findings. The appellee's second witness, Mrs. Hnede B. Sillah, Senior Manager and Chairperson of the Disciplinary Committee, corroborated the first witness's testimony and testified to the Committee's inquiry, including its outreach to Rocia Electrical and Engineering Company and to the person the appellant had named as its agent, both of whom disclaimed knowledge of the transaction.

On May 2, 2025, the Hearing Officer rendered his ruling, finding that the appellant had been denied due process, in that he was not afforded the opportunity to face his accuser, whose written complaint was the basis of the charge, and in that his counsel had been excluded from the internal investigation. The Hearing Officer accordingly held the appellee liable for the wrongful dismissal and ordered the payment of fourteen (14) months' salary, which he placed at Ten Thousand Five Hundred United States Dollars (US\$10,500.00). The operative portion of the ruling is restated verbatim below:

RULING

After a careful observation of the witnesses' testimonies, evidence adduced during trial, the facts and surrounding circumstances, we hold the conviction that the Complainant is being wrongfully discharged from the employ of the Liberia Electricity Corporation. It is therefore, our holding and conviction that

Defendant/LEC reinstates Complainant and pay all of his entitlements and benefits as if he was not dismissed or in lieu of reinstatement, he be paid Fourteen (14) months' salary which amounts to US\$10,500.00 (Ten Thousand Five Hundred United States Dollars). RELIANCE: Chapter 14, Section 14.10 (i) (ii) 1 and 2 of the Decent Work Act of 2015. Given under my hand and the seal of this Ministry of Labour this 2nd day of May, A.D. 2025.

*Signed: Boikai A. Sheriff,
Director of Labour Standards, Ministry of Labour.*

Being dissatisfied, the appellee excepted to the ruling of the Hearing Officer and petitioned the National Labor Court for Montserrado County for a judicial review, praying the court to review and reverse the ruling of the Hearing Officer and to dismiss the complaint in its entirety. The appellee contended, in substance, that the appellant had in fact been accorded due process; that he received written notice of the allegation, submitted a written and oral response, and had the opportunity to confront and cross-examine the witnesses who testified in his presence; that an internal disciplinary investigation does not require legal representation; that union representation had been provided consistent with its policy; and that the appellant's own admissions during the investigation, together with the documentary and testimonial evidence, established grave misconduct warranting immediate termination under Section 14.3(a) of the Decent Work Act.

The appellant filed his returns to the petition on June 13, 2025, praying the court to deny the petition and to uphold the ruling of the Hearing Officer on grounds that his accuser did not appear to prove the allegation; that a complaint unsupported by evidence cannot amount to proof; that the matter being criminal in nature and had already been investigated by the police, the appellee lacked authority to investigate and dismiss him upon it; and that he had been denied due process, including the right to be represented by counsel, during the internal investigation.

The National Labor Court, presided over by His Honor Joseph M. Kollie, Resident Judge, reviewed the matter upon two issues: first, whether the appellant was accorded due process in the conduct of the internal investigation; and second, whether the dismissal of the appellant following an internal investigation satisfied Section 14.3 of the Decent Work Act.

The Labor Court answered the first issue in the affirmative, holding that the appellant was cited, and he appeared, submitted a written response, and had the opportunity to be heard and to cross-examine, and that his own admissions were properly used against him. The court further held, on the second issue, that the appellant was dismissed for grave misconduct, same being the breach of duty to his employer and its customer, which stood independent of

any criminal conduct for which the state, through the customer, might separately prosecute him. Accordingly, the court set aside the ruling of the Hearing Officer and sustained the appellee's petition.

The appellant excepted to the ruling of the National Labor Court and announced an appeal to this Honorable Court. He thereafter filed an eight-count bill of exceptions which basically complained that the Labor Court Judge erred when he set aside the Hearing Officer's ruling which stated that the appellant's accuser failed to show up during the entire investigation at the Labor Ministry; that the internal investigation conducted failed to abreast the appellant with his Marinda Right before the investigation, and that the appellant's constitutional right was violated when he was disallowed representation by his legal counsel during the internal investigation.

It is settled that the factual findings of an administrative agency, such as the Ministry of Labor, are ordinarily conclusive and are not to be disturbed by a reviewing court where they are supported by substantial evidence. A reviewing court may, however, disturb or reverse such findings where the findings were not made in compliance with law, or were not the result of a fair determination; or where, as a matter of law, the conclusions reached run contrary to, or do not conform to, the evidence or the applicable law. *Worflor et al. v. Save the Children-UK*, Supreme Court Opinion, October Term, A.D. 2015; *The Liberia Institute of Certified Public Accountants v. Ministry of Finance*, 38 LLR 657, 672 (1998); *Catholic Relief Services (CRS) v. Natt*, 42 LLR 400, 413 (2004); and *LOIC v. Williams and Zinnah*, 42 LLR 451, 461 (2004)

Based upon the principle above, this Court examined whether a grave misconduct, as alleged against the appellant, was proven by preponderance of the evidence examined in the records, and for which the Labor Court Judge ruling can be upheld.

In our examination of the National Labor Court's ruling, we take note of the appellant's first assignment of error which indicates that his accuser never appeared to prove the allegation, and that there was no receipt to evidence his receipt of the money.

This Court says, the non-appearance of the customer at the investigation, and the absence of a written receipt for the money, do not defeat the proof of misconduct alleged against the appellant as seen from the records. The customer Beyan Lavelah did orally complain, and further did a written complaint to the appellee LEC, and based on the written complaint, the appellee conducted an investigation, because as it stated, such conduct by the appellant was grave and exposed the Corporation to public ridicule and a loss of public trust, and this

rendered it impossible to continue the relationship of mutual trust and confidence between the LEC and the appellant.

Proof of misconduct may be established by admissions and corroborating evidence; it need not rest upon the testimony of the complainant or upon a documentary receipt. The party accused of wrongfully dismissing the appellant is not the customer Lavalá but the appellee LEC which conducted an investigation based on a complaint made to it and which it stated was done in conformity with the Decent Work Act (DWA).

The records show that the appellee did conduct an investigation into the complaint made by the customer, and the appellant admitted that the transaction took place and he executed a promissory note at the Paynesville Police Station to refund the complainant, and he did make two installment payment of Two Hundred United States Dollars (US\$200.00) toward refunding the customer. The appellant's argument that he did not himself receive the money from the complaining customer, but that he was simply acting as a guarantor, implies that the appellant referred a customer to an outside company and stood as guarantor. Based on this narration of the appellant, he acted outside his job description as a Metering and Anti-Theft Supervisor by directing a customer to procure a dedicated transformer outside the established process of the LEC, and under taking to have that transformer installed and connected to the LEC's grid in derogation of his duty and to the exposure of the Corporation to loss of public trust. This, the Court says, no less than the receipt of the money, is a breach of the mutual trust and confidence that Section 14.3(a) of the DWA protects.

This admission by the appellant taken together with the corroborating accounts of the appellee's employees, and the collapse of the appellant's "guarantor" defense upon the Committee's inquiry to Rocia Electrical and Engineering Company who denied knowing of the said transaction, supported a preponderance of the evidence of the appellant's misconduct. It is settled that "all admissions made by a party himself, or by his agent acting within the scope of his authority, are admissible." (*In Re Gibson v. Dennis*, 40 LLR 698, 703 (2001); and Section 25.8 of the Civil Procedure Law.

The contention of the appellant that he was not represented by a lawyer during the appellee's internal investigation, and that he was not read his Marinda's right before the investigation, is a novel complaint relating to labor practices law in Liberia.

Labor matters are civil and are guided by the civil procedure law practice. Right to the appellant having a counsel in an internal investigation or being informed of his Miranda rights are novelty to a civil investigation. An internal investigation is simply fact finding and does not

require the standard of confrontation as in a criminal case, in which case such an investigation is conducted by the police. In this case, a customer has complained to the appellee and the appellee called an investigation to substantiate the complaint. We agree that such investigation in substantiating the complaint required no lawyer. The right to counsel at every stage of an investigation, and the caution against un-counseled interrogation, are features of a criminal process, and has no application to an internal labor non-criminal disciplinary inquiry.

Likewise, reading the appellant his Marinda's Rights before the investigation was conducted, we say, is not required in an employer's internal investigation, and which we say was a fact-finding process and only subjected to our civil procedure process.

The appellant has presented his dismissal as a criminal related matter and as the Labor Judge held, the appellant's dismissal was justified on the grounds of *grave misconduct*, which involved breaching of duty to both appellant's employer and the employer's customer. This breach was considered a standalone matter, separate from any potential criminal charges that the state, acting through the customer, might pursue. As a result, the court's ruling overturning the Hearing Officer's decision in favor of the appellee was proper and consistent with law.

An employer has no duty to first successfully prosecute an employee before terminating his services where the employee's act constituted gross negligence of duty and where the employer does not charge the employee with fraud or the commission of a criminal act. *National Port Authority v. Harris*, 35 LLR 145,154 (1988).

WHEREFORE AND IN VIEW OF THE FOREGOING, the ruling of the National Labor Court is hereby affirmed, and the appeal denied. The Clerk of this Court is ordered to send a Mandate to the National Labor Court, commanding the Labor Court Judge to resume jurisdiction and give effect to the Judgment emanating from this Opinion. Costs are ruled against the appellant. AND IT IS HEREBY SO ORDERED.

WHEN THIS CASE WAS CALLED FOR HEARING, COUNSELLORS NATHANIEL K. INNIS, SR., OF THE GARLAWOLU AND ASSOCIATES LAW OFFICES, IN ASSOCIATION WITH RODNEY P. KUOW OF THE JONES AND ASSOCIATES LEGAL CONSULTANTS, INC., APPEARED FOR THE APPELLANTS. COUNSELLOR SAGIE F. KAMARA, SR., IN-HOUSE LEGAL COUNSEL FOR THE LIBERIA ELECTRICITY CORPORATION, APPEARED FOR THE APPELLEE.